

1 ENGROSSED SENATE
2 BILL NO. 65

By: Weaver of the Senate

3 and

4 Turner of the House

5
6 An Act relating to substance abuse services; defining
7 terms; authorizing the possession, acquisition,
8 distribution, and administration of emergency opioid
9 antagonists by any person; providing criminal and
10 civil immunities; providing for codification;
11 providing an effective date; and declaring an
12 emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 2-403 of Title 43A, unless there
16 is created a duplication in numbering, reads as follows:

17 A. As used in this section:

18 1. "Emergency opioid antagonist" means a drug including, but
19 not limited to, naloxone that blocks the effects of opioids and that
20 is approved by the United States Food and Drug Administration for
21 the treatment of an opioid overdose; and

22 2. "Person" means, unless the context otherwise requires, any
23 individual, partnership, association, corporation, limited liability
24 company, governmental entity, tribal entity, public or private
institution of postsecondary education, or other legal entity.

1 B. Notwithstanding any provision of law to the contrary, any
2 person may:

3 1. Possess and store emergency opioid antagonists;

4 2. Acquire emergency opioid antagonists by purchase or
5 donation;

6 3. Distribute or make emergency opioid antagonists available to
7 any person to the extent permitted under applicable federal law; and

8 4. Administer an emergency opioid antagonist to any person who
9 the person believes, in good faith, is experiencing an opioid
10 overdose.

11 C. A person shall not be subject to criminal prosecution for
12 possessing, storing, acquiring, distributing, making available, or
13 administering emergency opioid antagonists pursuant to this section.

14 D. Any person who, in good faith, distributes, makes available,
15 or administers emergency opioid antagonists pursuant to this section
16 shall not be liable for any civil damages as a result of any acts or
17 omissions by such person, except for acts or omissions constituting
18 gross negligence or willful or wanton wrongs in distributing, making
19 available, or administering emergency opioid antagonists.

20 SECTION 2. This act shall become effective July 1, 2026.

21 SECTION 3. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives